

TENTATIVE RULINGS

DEPT. CM7

If the tentative rulings below are for a past date, please try the following to force a refresh of this page:

For a Windows-based computer, press "Cntrl" + "Shift" + "R" at the same time.

For an Apple computer, press "Cmd" + "Shift" + "R" at the same time.

TENTATIVE RULING

Date: 09/23/2026

Case #	Case Name	Tentative
01375476	Rodriguez – Trust	TENTATIVE RULING Case: Rodriguez – Trust 01375476 Calendar No: 1 Date: 09/23/26 MOTION TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES (ROA 89) MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROA 90) Petitioner Devara Mathias moves to compel initial responses to form interrogatories, set two. Petitioner also moves to deem requests for admission, set two, admitted. These motions are unopposed despite proof of service. Both motions are GRANTED. The evidence before the court is that Petitioner propounded second sets of Form Interrogatories and Requests for Admission on Respondent Rosalia Mattern on 1/15/26 by mail from out of state. Responses were due 2/24/26. No responses to the discovery have been served to date. Moving party need not show anything more to obtain an order compelling initial responses to discovery. (Code of Civ. Proc. §§ 2030.290; 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906.) Moving party need not showing any more to obtain an order deeming facts admitted. (Code Civ. Proc. § 2033.280(b).)

		Pursuant to Code of Civil Procedure sections 2030.290(c), 2031.300(c), and 2033.280(c), the court imposes monetary sanctions against Rosalia Mattern in the amount \$2,120.00 (5.0 hours x \$400 ph + \$120.00 in filing costs). <u>ORDERS</u> The court ORDERS Respondent Rosalia Mattern to respond to the Form Interrogatories, Set Two, without objection within 10 days of notice of this ruling, extended for method of service. The court DEEMS ADMITTED Requests for Admission Nos. 8-12. The court imposes reasonable sanctions of \$2,120.00 against Respondent Rosalia Mattern payable within 30 days of notice of this ruling, extended for method of service, or any further date as agreed upon by the parties in writing. Counsel for moving party is ordered to give notice of this ruling. Alternatively, counsel for moving party may elect to prepare, file, and serve a Proposed Order After Hearing.
01498382	Sample - Conservatorship	TENTATIVE RULING Case: Sample - Conservatorship 01498382 Calendar No: 2 Date: 09/23/26 MOTION TO SEAL (ROA 101) Conservator Tafrica Leggett moves to seal court records. (ROA 101.) Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate proceedings . . . are not closed proceedings. No statute exempts probate files from the status of public records." (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, "they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection." (<i>Ibid.</i>)

Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that:

1. There exists an overriding interest that overcomes the right of public access to the record;
2. The overriding interest supports sealing the record;
3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
4. The proposed sealing is narrowly tailored; and
5. No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d).)

The party moving to have a record sealed bears the burden of proving such facts. (See *H.B. Fuller Company v. Doe* (2007) 151 Cal.App.4th 879, 894-895.)

Here, Conservator states that "documents have been filed that contain sensitive and personal information, including medical records, social security numbers, and copies of our drivers licenses." Conservator requests that the court "seal or redact the sensitive documents."

While the court agrees that the foregoing material could be sealed, the Conservator did not specifically identify any document or portions of documents that she wishes to be sealed, nor did the Conservator provide redacted copies of such documents for the public record.

The court notes that many documents in this case are already sealed (i.e., ROAs 2, 3, 7, 22, 38, 40, 48, 71, 72, 73, 74, 80, 93, 94, 98, 99, and 111.) On the record presented, it is not clear which, if any, further documents or portions of documents should be sealed.

The Conservator has not complied with California Rules of Court, rules 2.550-2.551, which rules set forth the procedures for sealing of public court records.

There are other procedural defects. The motion fails to comply with Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1110(a) in that it fails to give notice of the nature of the order sought and the grounds for the issuance of the order. It further fails to comply with California Rules of Court, rules 3.1112, 3.1113 and 3.1115.

The court further notes that there is no proof of service accompanying this motion.

Based on the foregoing, the court's tentative ruling is to **deny the motion without prejudice** to the Conservator's

		right to seek the relief requested in a procedurally appropriate manner.
01498685	Sample - Elder Abuse	TENTATIVE RULING Case: Sample - Elder Abuse 01498685 Calendar No: 6 Date: 09/23/26 MOTION TO SEAL (ROA 39) Petitioner Tafrica Leggett moves to seal court records. (ROA 39.) Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate proceedings . . . are not closed proceedings. No statute exempts probate files from the status of public records." (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, "they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection." (<i>Ibid.</i>) Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The party moving to have a record sealed bears the burden of proving such facts. (<i>See H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894-895.) Here, Petitioner states that "documents have been filed that contain sensitive and personal information, including medical records, social security numbers, and copies of our

		drivers licenses." Petitioner requests that the court "seal or redact the sensitive documents." While the court agrees that the foregoing material could be sealed, Petitioner did not specifically identify any document or portions of documents that she wishes to be sealed, nor did Petitioner provide redacted copies of such documents for the public record. Petitioner has not complied with California Rules of Court, rules 2.550-2.551, which rules set forth the procedures for sealing of public court records. There are other procedural defects. The motion fails to comply with Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1110(a) in that it fails to give notice of the nature of the order sought and the grounds for the issuance of the order. It further fails to comply with California Rules of Court, rules 3.1112, 3.1113 and 3.1115. The court further notes that there is no proof of service accompanying this motion. Based on the foregoing, the court's tentative ruling is to deny the motion without prejudice to Petitioner's right to seek the relief requested in a procedurally appropriate manner. [Motion Type]
01510686	Pfrang - Elder Abuse	TENTATIVE RULING Case: Pfrang - Elder Abuse 01510686 Calendar No: 7 Date: 09/23/26 MOTION FOR WRIT OF POSSESSION (ROA 31) Petitioner Mayumi Pfrang ("Petitioner") moves for a writ of possession to recover a 2005 Toyota Corolla valued at approximately \$4,800.00 that is allegedly in the possession of Julie Renee Amroso. Code of Civil Procedure § 512.010 provides: "(a) Upon <u>the filing of the complaint or at any time thereafter</u>, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for

the writ with the court in which the action is brought.

(b) The application shall be executed under oath and shall include all of the following:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

(c) The requirements of subdivision (b) may be satisfied by one or more affidavits filed with the application."

(Emphasis added.)

Code of Civil Procedure sections 512.010 to 512.120 govern a **prejudgment** writ of possession when there is an underlying action to recover property (e.g., Claim and Delivery, Conversion, etc.) Here, there is no underlying action concerning the possession of the 2005 Toyota Corolla. The court denied the request for a restraining order on 11/12/25. The court made no orders and set no further hearing on Petitioner's request for an order to have the car turned over to Petitioner. Indeed, such issue is not appropriately handled in connection with a request for an elder abuse restraining order.

The motion for writ of possession is **DENIED as procedurally defective.**

		This order is without prejudice to Petitioner's right to seek the relief requested in an appropriate action.
		TENTATIVE RULING
		Case:
		Calendar No.:
		Date: